

Tentative Rulings for September 21, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400078	ALMAZAN vs W.A RASIC CONSTRUCTION COMPANY, INC.	DEMURRER ON CROSS- COMPLAINT

Tentative Ruling:

Cross-Defendants Quanta Utility Engineering Services, et al.'s Demurrer as to the 4th cause of action for Breach of Contract is overruled; as to Defendant Quanta Utility Engineering Services' Demurrer to the 1st, 2nd, 3rd, and 5th causes of action, it is overruled; as to defendants Quanta Services, Inc. and Utility Line Management's Demurrer to the 1st, 2nd, 3rd, and 5th causes of action, it is sustained.

Order to Show Cause is set for 11/19/26, why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL cross-defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFFS AND REY S YANG.

REQUEST FOR JUDICIAL NOTICE (RJN)

The Court denies RJN of Exhibit 1 (Sacramento County Citizen Access Fictitious Business Search). Materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 608.) If a document was filed by the governmental agency itself, then Evidence Code section 452, subdivision (c), applies and judicial notice can then be granted.

Exhibit 2 is the Compromise and Release form (or the settlement contract) paying out Plaintiff in Worker's Compensation case number ADJ17384473. The date of injury is December 9, 2022, which is the same date alleged as Plaintiff's injury date in the Complaint and Cross Complaints. However, the listed employer is "Quanta International Utility Line Management," which is not a named party in the Cross Complaint. There is no evidence or foundation that ties Quanta International Utility Line Management to any of the named Cross Defendants in the Cross Complaint. Cross Defendants rely on Evidence Code section 452, subdivision (c) as the basis of judicial notice, arguing the document is an official act of the Los Angeles County Recorder's Office. However, like Exhibit 1, this release form is prepared by private parties and filed with a government agency such that it is not an official record of which judicial notice may be given. (*People v. Thacker, supra*, 175 Cal.App.3d at 598-599; *Stevens, supra*, 75 Cal.App.4th at 608.) Cross Defendants' reliance on *Satchmed Plaza Owners Assn v. UWMC Hospital Corp.* (2008) 167 Cal.App.4th 1034, 1040-1041 and *McElroy v. Chase Manhattan Mortg. Corp.* (2005) 134 Cal.App.4th 388, 394 are misplaced as these cases address judicial notice of recorded deeds, not a release.

Accordingly, Exhibit 3, the Order relating to the workers compensation case, is irrelevant.

On September 8, 2026, Cross Defendants filed another supplemental RJN for Exhibit 4, titled "Fictitious Business Name Statement" by ULMS. However, this document is also one that is prepared by a private party and filed with a government agency such that it is not an official record that the Court can take judicial notice of. (*People v. Thacker*, *supra*, 175 Cal.App.3d at 598-599; *Stevens supra*, 75 Cal.App.4th at 608.)

DEMURRER

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

1ST (INDEMNITY) AND 5TH (EXPRESS INDEMNITY) CAUSES OF ACTION

Indemnity means "the obligation resting on one party to make good a loss or damage another party has incurred." (*Rossmore Sanitation, Inc. v. Pylon, Inc.* 91975) 13 Cal.3d 622, 628.) "An indemnitor is the party who is obligated to pay another." (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.) "An indemnitee is the party who is entitled to receive the payment from the indemnitor." (*Id.*) "An indemnity obligation arises from two general sources." (*Id.*) First, it may arise from "express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances." (*E.L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 506 ("E.L. White").)

Second, indemnity may also arise based on equitable considerations. (*E.L. White, supra*, 21 Cal.3d at 507.) "Unlike contractual indemnity which looks to the parties' intent, equitable indemnification focuses on principles of fairness and justice and is designed to apportion loss among tortfeasors in proportion to their relative culpability[.]" (*Maryland Casualty, supra*, 35 Cal.App.4th at 864.) A condition of equitable indemnity is that there must be some basis for tort liability against the proposed indemnitor, usually involving breach of a duty owed to the underlying plaintiff. (*Stonegate Homeowners Ass'n. v. Staben* (2006) 144 Cal.App.4th 740, 751.) "The doctrine applies only among defendants who are jointly and severally liable to the plaintiff." (*BFBG Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852.)

"Equitable indemnity 'applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.'" (*United Services Auto. Ass'n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) "Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be born by each joint tortfeasor 'in direct proportion to [its] respective fault.'"

(*Expressions at Rancho Niguel Assn. v. Ahamnson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, because RJN for Exhibits 1-4 have been denied, analysis on the merits of the demurrer will be based solely on the Cross Complaint. Any arguments relying on allegations or documents outside of the operative pleading will not be considered as they are extrinsic evidence. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not part of any court record.]

The Cross Complaint alleges Plaintiff was employed by ULMS when he was injured at the Project site. (XComplt., Preliminary Allegations, ¶3.) Plaintiff filed suit against SCE and WARC for the Government Claims Act and Negligence. (*Id.* at ¶2.) SCE filed a Cross Complaint against WARC wherein the Court granted SCE's Motion for Summary Adjudication as to the issue of WARC's duty to defend SCE. (*Id.* at ¶¶4-6.) Plaintiff and SCE later reached a settlement. (*Id.* at ¶7.) During litigation, SCE produced a master services agreement and sub-agreement between SCE and QUES. (*Id.* at ¶8.) Under the sub-agreement, QUES performed construction project management services and retained ULMS as a subcontractor to perform and oversee work at the Project site. (*Id.* at ¶¶8-9.) Under the master services agreement, QUES was obligated to maintain workers' compensation insurance and indemnify SCE. (*Id.* at ¶11.) WARC alleges its liability to SCE is based solely upon a derivative form of liability, not from WARC's own conduct, to which it is entitled to complete indemnity from Cross-Defendants. (*Id.* at First Cause of Action ["COA"], ¶3.) Taking the foregoing allegations as true for purposes of demurrer, the Cross Complaint states a claim for indemnity.

Workers Compensation Act ("WCA")

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Worker's Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Lab. Code § 3600, subd. (a).) The general rule is that Workers' Compensation is, "the sole and exclusive remedy of the employee or his or her dependents against the employer" for work-related injuries. (Lab. Code § 3602, subd. (a); *Rymer v. Hagler* (1989) 211 Cal.App.3d 1171, 1177.)

Cross Defendants assert PAR is Plaintiff's actual employer, which operates under the fictitious names of QUES and ULMS, such that any indemnity claim against ULMS and QUES is barred by the WCA pursuant to Labor Code section 3864, citing *E.B. Wills Co. v. Superior Court* (1976) 56 Cal.App.3d 650 ("*EB Wills*").

In opposition, WARC points out the judicially noticed documents do not establish that QUES is Plaintiff's employer. WARC argues Labor Code section 3864 does not require dismissal because it only applies to the employer.

Labor Code section 3864 states:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement to do so executed prior to the injury.

The chapter that this code section falls within pertains to workers compensation.

Section 3864 "enforces the exclusivity of workers' compensation by precluding concurrent tortfeasors from seeking indemnification from negligent employers" absent a written agreement executed prior to the injury ...Prior to the statute's enactment in 1959, the employer was potentially liable not only for the injured employee's workers' compensation benefits, but also for additional damages awarded to the employee at common law. [Citation.] ""The California legislature felt that this double burden placed upon the employer was in contravention of the exclusive remedy theory of the workmen's compensation statutes", and therefore enacted... [Section] 3864 [Deering's] to abolish any right to indemnity other than by express contract.

(*Employers Mut. Liab. Ins. Co. v. Tutor-Saliba Corp.* (1998) 17 Cal.4th 632, 638 [63 Cal.Comp. Cases 132, 135.]) In *Ralph M. Parsons Co. v. Combustion Equipment Associates, Inc.* (1985) 172 Cal.App.3d 211, 216, f.2, the Court stated due to Labor Code section 3864, "no cause of action may be maintained against the employer for implied or equitable indemnity or contribution, but only on the basis of an express indemnity agreement. Otherwise, the employer's limited liability under workers' compensation law would be largely illusory."

Labor Code section 3864 is not limited to indemnity claims and is applicable to other causes of action, such as breach of contract, breach of warranties, fraud, negligent misrepresentation, and equitable estoppel, where the aim is to impose liability against an employer for the liability that it is exempted from under Labor Code section 3864. (*Alameda Tank Co. v. Starkist Foods, Inc.* (1980) 103 Cal.App.3d 428, 433.)

In *EB Wills, supra*, 56 Cal.App.3d 650, an employee brought a negligence suit against defendant third parties for work related injuries. The defendant cross complained against the corporate employer for contribution. (*Ibid.*) The Court of Appeal commanded the trial court to sustain the employer's demurrer and held that under Labor Code section 3864, "the employer of an employee who is injured as the result of the joint negligence of the employer and a third party is no longer required to indemnify the third party in the absence of an indemnification agreement." (*Id.* at 654.) "By insulating an

employer against liability under the equitable doctrine of implied indemnity, section 3864 fully embraces the ‘exclusive remedy’ concept visualized by the workers’ compensation law of [California].” (*Id.* at 654-655.)

In the present case, WARC seeks indemnification against QUES, QSI, and ULMS for Plaintiff’s injuries. (XComplt., First COA, ¶¶1-3.) Because the Cross Complaint only alleges ULMS as Plaintiff’s employer (*Id.* at Preliminary Allegations, ¶3), and there is no indemnification agreement between ULMS and WARC, applying *EB Wills* and Labor Code section 3864, the indemnity claim against ULMS fails. Thus, the demurrer as to ULMS is sustained, but the demurrer as to QUES is overruled.

Piercing the Corporate Veil

As to QSI, Cross Defendants points out there is no basis to impose liability on QSI as the parent corporation to QUES.

Under California law, a corporation is ordinarily treated as a distinct legal entity, separate from its shareholders, officers, and directors, with its own rights and obligations. (*Sonora Diamond Corp. v. Sup. Ct.* (2000) 83 Cal.App.4th 523, 538.) However, this corporate separateness may be disregarded under the doctrine of “piercing the corporate veil” when the corporation is used to commit fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose. In such cases, courts may treat the acts of the corporation as those of the individuals or entities actually controlling it, typically its equitable owners (*Id.*) Importantly, conclusory or boilerplate allegations are not sufficient to support veil piercing. Specific factual allegations are required to show both unity of interest and an inequitable result. (*Cork v. CC-Palo Alto, Inc.* (N.D. Cal. 2021) 534 F.Supp.3d 1156, 1191; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) For example, merely alleging that a person owns all the stock of a corporation and makes all management decisions is not enough to disregard the corporate form. (*Leek, supra*, 194 Cal.App.4th at 415.) Here, the Cross Complaint solely alleges “QUES is a subsidiary of QSI.” (XComplt., Preliminary Allegations, ¶10.)

2ND CAUSE OF ACTION – CONTRIBUTION (APPORTIONMENT OF FAULT)

Civil Code section 1431.2 states, “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against that defendant for that amount.” (Civ. Code, § 1431.2, subd. (a).)

The comparative fault doctrine “is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict, liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314.) It apportions liability in direct proportion to fault in all cases. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 827.)

For the same reason set forth under the indemnity claim, the Court sustains the demurrer as to ULMS and QSI and overruled the demurrer as to QUES.

3RD CAUSE OF ACTION - DECLARATORY RELIEF

Declaratory relief is authorized pursuant to Code of Civil Procedure sections 1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (Code Civ. Proc., § 1060.) Declaratory relief has two elements a party must satisfy: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’...In the context of a demurrer, the court will evaluate ‘whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties...Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal.App.4th 484, 489.) Code of Civil Procedure section 1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

Here, the Cross Complaint repackages the same indemnity and contribution theories set forth under the first two causes of action. For the same reason set forth under the first two causes of action, the Court sustains the demurrer as to ULMS and QSI and overruled the demurrer as to QUES.

4TH CAUSE OF ACTION: BREACH OF CONTRACT

The elements for a breach of contract claim are: (1) contract; (2) plaintiff’s performance; (3) breach; and (4) damages. (*Marina Pacific Hotel and Suites, LLC v. Fireman’s Fund Insurance Company* (2022) 81 Cal.App.5th 96, 108.) A breach of contract claim necessarily begins with a contract. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1352.

Cross Defendants assert the Cross Complaint does not attach the alleged master services agreement evincing that WARC is a third-party beneficiary to the master services agreement. They argue that even accepting the allegations, the indemnity obligation under the master services agreement runs from QUES to SCE, not to WARC. Conversely, WARC argues it pled the existence of the contract, relevant indemnity

obligations, and resulting exposure to SCE. It asks for leave to amend should the Court require greater specificity.

In a breach of contract cause of action, the plaintiff must attach the contract, plead its terms in verbatim, or plead its legal effect. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2022) 29 Cal.4th 189, 198-1999; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) A complaint is demurrable if, “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10, subd. (g).)

Here, the operative pleading alleges the existence of a master services agreement and sub-agreement between SCE and QUES, to which WARC is not a party but is a third-party beneficiary. (XComplt., Preliminary Allegations ¶¶8, 11; Fourth COA ¶¶10-12.) This is sufficient for purposes of demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN vs EQUITY LIFESTYLE PROPERTIES, INC.	MOTION TO DETERMINE DISCOVERY DEADLINES, TIMELINESS OF DISCOVERY RESPONSES, AND LEGAL CONSEQUENCES

Tentative Ruling:

Plaintiff's Motion to Determine Discovery Deadlines is denied.

The Plaintiff's Motion for an Order Determining Discovery Deadlines, Timeliness of Defendants' Discovery Responses, and Legal Consequences is fundamentally flawed and lacks any basis in the California Civil Discovery Act. Plaintiff presents the question of whether the April 20, 2026, attempted Anti-SLAPP filing triggered a stay under Code of Civil Procedure section 425.16(g) and whether the June 22, 2026, responses were timely. In the Court's June 10, 2026 ruling, it explicitly identified the resubmitted motion filed on May 21, 2026, as the operative filing; and ignores the clear mathematical extension of deadlines provided by Code of Civil Procedure section 12a.

The strategic integrity of California litigation relies upon strict adherence to the California Civil Discovery Act (Code of Civil Procedure sections 2016.010–2036.050). It is imperative that the Court declines to issue advisory opinions on discovery matters that the Legislature intended to be "self-executing." By refusing to provide standalone determinations on timing, the Court prevents the discovery process from regressing into the "sporting theory of litigation" condemned in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355.

Plaintiff's current motion essentially seeks a re-litigation of these settled procedural facts under the guise of discovery management. While Plaintiff appears "In Pro Per," she is

obligated to follow established procedural law; her self-represented status does not grant the Court the power to bypass the mandatory statutory framework of the Discovery Act.

Discovery in California is strictly a "creature of statute" as defined in Code of Civil Procedure section 2019.010. This statutory exclusivity is the bedrock of judicial efficiency, ensuring that litigants follow a uniform roadmap. Deviations—such as the "freestanding motion" requested here—threaten to undermine the predictability of litigation. As established in *Holm v. Superior Court* (1986) 187 Cal.App.3d 1241 and reaffirmed in *Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, the Court possesses no power to expand the authorized methods of discovery. When a party disputes the timeliness of responses or the preservation of objections, they must utilize the "device-specific" motions provided by the Act. If Plaintiff believes that the responses were untimely and there is a legal consequence to the untimely responses, Plaintiff needs to pursue specific remedies set forth in the discovery statutes pertaining to the particular type of discovery response.

Plaintiff's generalized request for an "Order Determining Discovery Deadlines" is not an authorized motion. The Court cannot create a non-statutory mechanism to resolve timing disputes in a vacuum.

The Court has an affirmative duty to discourage the misuse of the discovery process and the filing of frivolous motions. Under Code of Civil Procedure section 2023.010 and section 2023.030, the Court may impose sanctions for the misuse of process. Furthermore, Code of Civil Procedure section 128.5 (bad faith/frivolous actions) and section 128.7 (frivolous pleadings) protect judicial resources from meritless filings.

While self-represented litigants cannot recover attorney fees as a discovery sanction, they are subject to sanctions for "reasonable expenses incurred" by the opposing party, such as research and filing costs (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015). Tactics constituting a misuse of the discovery process include persisting in an attempt to obtain discovery through unauthorized methods, filing discovery motions without a proper statutory basis, or requesting "terminating sanctions" or a "waiver of all objections" as a first-measure remedy for a timing dispute.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendant County of Riverside's Demurrer is the overruled.

As to the Motion to Strike, it is granted to the extent it seeks to remove the reference to attorney's fees and costs under Labor Code section 1002.5.

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) None of the causes of action are uncertain.

1ST CAUSE OF ACTION FOR DISABILITY DISCRIMINATION:

To state a prima facie claim of disability discrimination, a plaintiff must allege: “(1) he suffers from a disability; (2) he is otherwise qualified to do his job; and, (3) he was subjected to adverse employment action because of his disability.” (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886.) The Complaint alleges that On April 20, 2023, Plaintiff sustained a traumatic brain injury (TBI) which left him with chronic migraines, PTSD, anxiety, nausea, tinnitus, blurred vision, and memory issues. Defendants were fully aware of Plaintiff’s disability through documented FMLA leave (April 20 to June 5, 2023) and medical accommodation letters from his treating physicians requesting 5-minute hourly breaks from screen time and fluorescent lighting. (Compl. ¶¶ 20-24). However, Defendants provided minimal accommodation and instead subjected Plaintiff to adverse employment actions beginning in February 2025. Supervisors further manufactured an appearance of underperformance by intentionally delaying and withholding seventeen of his case submissions in July 2025. (Compl. ¶¶ 42-47). Also, Plaintiff alleges that the stated performance grounds were a pretext to conceal discriminatory motives—noting that discharge documents deliberately omitted any reference to his disability or accommodation requests—causing him severe emotional distress, physical sickness, and lost earnings and benefits. The Complaint sufficiently states facts sufficient to constitute a disability discrimination claim.

2ND CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF FEHA:

The elements of a claim for retaliation under FEHA are “(1) the employee’s engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.” (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal. App. 4th 686, 713.) The Complaint alleges that Plaintiff engaged in protected activities including requesting and taking approved medical leave under FMLA/CFRA for his traumatic brain injury (TBI) from April 20, 2023, to June 5, 2023; requesting reasonable workplace accommodations (including 5-minute hourly breaks from screen time and fluorescent lighting) supported by medical notes from his treating physicians; raising complaints regarding discriminatory treatment and reporting that supervisors deliberately manipulated his work records by withholding seventeen case submissions in July 2025 to create a false appearance of underperformance. (Compl. ¶¶ 20-24). Rather than accommodating his medical restrictions or investigating the record manipulation, Defendants escalated adverse actions against him. These retaliatory measures included issuing a below-standard performance evaluation, placing him on a Performance Improvement Plan (PIP) and Corrective Counseling Confirmation Memorandum, placing him on administrative leave on September 11, 2025, and terminating his employment effective October 2, 2025. (Compl. ¶¶ 42-47). This is sufficient to constitute a FEHA retaliation claim.

3RD CAUSE OF ACTION FOR FAILURE TO ACCOMMODATE:

To state a claim for failure to make a reasonable accommodation, a plaintiff must show (1) the plaintiff has a disability covered by FEHA, (2) the plaintiff is qualified to perform the essential functions of the position (is a “qualified individual”), and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.) A “reasonable accommodation” is “a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 974.) Plaintiff alleged Defendants were fully aware that Plaintiff suffered from a traumatic brain injury (TBI) with ongoing symptoms, including chronic migraines, PTSD, anxiety, nausea, ringing in the ears, blurred vision, and memory issues. Plaintiff submitted requests for reasonable workplace accommodations supported by medical documentation from his treating physicians specifically requesting five-minute breaks per hour from screen time and fluorescent lighting. Under Government Code § 12940(m), employers are required to make reasonable accommodations for an employee’s known physical or mental disability unless doing so would impose an undue hardship. Defendants failed to fulfill this duty, providing only a minimal accommodation (a light cover for fluorescent lights) while failing to implement the prescribed break schedule or modify his performance standards to reflect his disability-related limitations. (Compl. ¶¶ 20-24). As a direct and proximate result of Defendants’ failure to accommodate, Plaintiff suffered special damages, prospective damages for lost future earnings, physical sickness, and severe mental and emotional pain and distress. The Complaint sufficiently states facts sufficient to constitute a failure to accommodate claim.

4TH CAUSE OF ACTION FOR FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS:

An employer’s failure to engage in the interactive process that causes harm to a disabled employee or former employee is independently actionable under the Fair Employment and Housing Act (FEHA). (*Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276-277; *Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 89.) To state a cause of action for failure to engage in the interactive process, the employee must demonstrate that they had a known physical or mental disability or medical condition, that they requested a reasonable accommodation or that the need for accommodation was obvious, and that the employer must have failed to engage in a timely, good faith, interactive process to determine effective reasonable accommodations. (Govt. Code §12940(n); *Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 978-981.)

Under FEHA, once an employee with a known physical or mental disability requests reasonable accommodation, an employer has an affirmative statutory mandate to engage in a timely, good-faith, interactive process to determine effective reasonable accommodations. Plaintiff informed Defendants of his TBI and resulting physical and mental symptoms. Instead of working interactively with Plaintiff, Defendants used his disability-related performance limitations—such as workflow management issues directly impacted by his TBI—to issue a below-standard evaluation, place him on a

Performance Improvement Plan (PIP), place him on administrative leave, and ultimately terminate his employment. The Complaint sufficiently states facts sufficient to constitute a failure to engage in the interactive process claim.

5TH CAUSE OF ACTION FOR FAILURE TO PREVENT DISCRIMINATION AND RETALIATION:

When a plaintiff seeks to recover damages based on a claim of failure to prevent workplace harassment under Fair Employment and Housing Act (FEHA), she must show three essential elements: (1) plaintiff was subjected to harassment; (2) defendant failed to take all reasonable steps to prevent harassment; and (3) this failure caused plaintiff to suffer injury, damage, loss, or harm. (*Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43.) The Complaint sufficiently states facts sufficient to constitute a failure to prevent discrimination and retaliation claim.

Under California Government Code § 12940(k), an employer has an affirmative duty to take all reasonable steps necessary to prevent discrimination, harassment, and retaliation from occurring in the workplace. Complaint alleged that Defendants County of Riverside (DPSS) and managing officials were fully aware of Plaintiff's TBI and his protected activities and rather than maintaining a discrimination-free environment, Defendants failed to take effective remedial or preventive action. Specifically, Defendants failed to adequately train supervisory and management staff regarding disability protections; failed to investigate Plaintiff's complaints regarding supervisor misconduct and intentionally manipulated work records; and encouraged, tolerated, ratified, and approved retaliatory measures by supervisors against Plaintiff.

6TH CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF FEHA:

The elements of a claim for retaliation under FEHA are "(1) the employee's engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation." (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal. App. 4th 686, 713.) The Complaint alleged that Plaintiff exercised his statutory rights by taking approved FMLA/CFRA medical leave from April 20, 2023, through June 5, 2023, following a traumatic brain injury. Upon his return from medical leave, Defendants subjected Plaintiff to a pattern of adverse personnel actions, culminating in a below-standard performance evaluation in February 2025, placement on a Performance Improvement Plan (PIP), administrative leave on September 11, 2025, and termination on October 2, 2025. The sharp contrast between Plaintiff's positive 2022 performance review (prior to his injury) and the sudden onset of negative performance evaluations following his medical leave supports an inference that Defendants' stated performance grounds were pretextual and retaliatory. The Complaint sufficiently states facts sufficient to constitute a retaliation in violation of FEHA claim.